

Neutral Citations

2025 KER 45583

Equivalent Citations

citation codes .

AXIS BANK LIMITED, v. STATE OF KERALA

Kerala High Court (Jun 5, 2025)

CASE NO.

CrI.MC 1778/2025

DISPOSITION

ALLOWED

JUDGES

- JUSTICE V.G. ARUN

ATTORNEY

2025:KER:45583

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR.JUSTICE V.G.ARUN

THURSDAY, THE 5TH DAY OF JUNE 2025 / 15TH JYAISHTA, 1947

CRL.MC NO. 1778 OF 2025

**CRIME NO.102/2024 OF CYBER CRIME POLICE
STATION,THIRUVANANTHAPURAM,
THIRUVANANTHAPURAM**

**IN CMP NO.2869 OF 2024 OF CHIEF JUDICIAL MAGISTRATE,
THIRUVANANTHAPURAM/ SPECIAL COURT FOR TRIAL OF CYBER
CRIME**

PETITIONER:

**AXIS BANK LIMITED,
REPRESENTED BY BRANCH MANAGER, CHATTARPUR BRANCH,
GROUND FLOOR, 619/10, DELHI SOUTH WEST, PIN - 110010**

BY ADVS.

SRI.R.SUNIL KUMAR

SMT.A.SALINI LAL

SHRI.JINU P. BINU

RESPONDENTS:

1 STATE OF KERALA,

REPRESENTED BY PUBLIC PROSECUTOR,

HIGH COURT OF KERALA, ERNAKULAM, PIN - 682031

2 DR. BEWIN ORAL.J,

S/O JUSTIN THAMPI G, FLAT NO. 16 A,

ARTECH METROPOLIS, MUKKOLAKKAL, MANNANTHALA P.O,

THIRUVANANTHAPURAM, PIN - 695015

3 SUB INSPECTOR OF POLICE,

CYBER CRIME POLICE STATION, (THIRUVANANTHAPURAM CITY),

THIRUVANANTHAPURAM, PIN - 695001

BY ADVS.

SRI. M.P. PRASANTH, PUBLIC PROSECUTOR

SHRI.REGINALD VALSALAN

SMT.ANN MARIA FRANCIS

**THIS CRIMINAL MISC. CASE HAVING COME UP FOR ADMISSION ON
05.06.2025,**

THE COURT ON THE SAME DAY PASSED THE FOLLOWING:

ORDER**Dated this the 05th day of June, 2025**

The petitioner, the Chattarpur Branch of the Axis Bank Limited, is aggrieved by the order passed by the Additional Chief Judicial Magistrate, Thiruvananthapuram in CMP No.2869 of 2024 in *Cybercrime* No.102 of 2024, directing the bank to deposit Rs.41,480/- before the court. The essential facts are as under; The *Cybercrime* complaint was filed alleging that, by impersonating themselves as investigating officers, seven persons threatened the defacto complainant with virtual arrest and defrauded him of Rs.79,85,000/-. It is further alleged that portion of that amount was transferred to the account maintained with the petitioner bank by a person named Prashanth Rathi. The defacto complainant approached the Magistrate's court

seeking release of his money deposited in different accounts. In the petition, it was pointed out that, out of the defrauded amount, Rs.41,480/- was transferred to the account of Prashanth Rathi. Accepting the submission, the Magistrate passed an order on 09.12.2024, directing the petitioner to deposit Rs.41,480/- in court.

2. Learned Counsel for the petitioner contended that there are other liens on the account of Prashanth Rathi, which are imposed on the basis of directions issued by investigating agencies and courts. It is therefore impossible for the bank to deduct Rs.41,480/- from that account and deposit in court as directed.

3. Learned Counsel for the defacto complainant submitted that due to the pendency of this case and the interim order, the proceedings before the Magistrate's court has come to a standstill.

4. The fact that there are other liens on the account of Prashanth Rathi is not in dispute. Being so, the direction to deposit Rs.41,480/- from out of that account cannot be sustained.

The Criminal Miscellaneous Case is hence allowed by quashing the order dated 09.12.2024, to the extent it directs the petitioner to deposit Rs.41,480/- before the court. It is made clear that I have not entered into the merits of the matter and the trial court can proceed with the case.

Sd/-

V.G.ARUN

JUDGE

NB/5-6

APPENDIX OF CRL.MC 1778/2025

PETITIONER ANNEXURES

**ANNEXURE 1 TRUE COPY OF THE PETITION IN CMP 2869/24
INCYBERCRIME 102/24**

**ANNEXURE 2 TRUE COPY OF THE OBJECTION SUBMITTED BY THE
PETITIONER IN CMP NO. 2869/24 IN CYBERCRIME 102/24 OF
CYBERCRIME POLICE STATION**

THIRUVANANTHAPURAM

ANNEXURE 3 TRUE COPY OF THE ORDER SHEET IN CMP 2869/24

**ANNEXURE 4 TRUE COPY OF THE LETTER DATED NIL SUBMITTED
BY**

THE PETITIONER BANK

TRUE COPY

P.A. TO JUDGE